

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No.48819 of 2021

Ghulam Muhammad & another

Versus

Mst. Shahida Parveen

J U D G M E N T

Date of hearing: 11.06.2026.
Petitioners by: Sh. Sakhawat Ali, Advocate.
Respondent by: Mr. Fida Hussain Rana, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- The petitioners, through the instant civil revision petition, have called in question the legality and propriety of the judgment and decree dated 09.07.2021 passed by the learned Additional District Judge, Faisalabad, whereby the appeal preferred by respondent Mst. Shahida Parveen was accepted, the judgment and decree dated 12.12.2020 passed by the learned Civil Judge, Faisalabad were set aside, and the suit instituted by the petitioners was dismissed.

2. Briefly stated, the petitioners are the admitted original owners of agricultural land measuring 19 Kanals and 17 Marlas situated in Chak No.78/J.B, Tehsil Sadar, District Faisalabad, detailed in the plaint. Their case before the learned Trial Court was that they are elderly and uneducated villagers having three daughters including the respondent. According to them, they never executed any oral gift in favour of the respondent, never intended to divest themselves of their ownership rights, and never voluntarily appeared before any competent revenue authority for attestation of mutation No.1819 dated 27.04.2010 purportedly sanctioning an oral gift in favour of the respondent. They alleged that the respondent, in connivance with the revenue staff, fraudulently procured the said mutation and that they came to know of

the same only shortly before institution of the suit. The respondent contested the suit by asserting that the petitioners, out of natural love and affection, had voluntarily gifted the suit property to her, delivered possession thereof and appeared before the revenue authorities to verify the transaction.

The learned Trial Court, after framing issues, recording evidence and hearing the parties, decreed the suit vide judgment and decree dated 12.12.2020, holding that the respondent had failed to establish a valid oral gift in accordance with law. However, the learned Appellate Court reversed the said findings primarily on the premise that the petitioners had admitted their signatures/thumb impressions on the mutation proceedings and had failed to prove the particulars of the alleged fraud. Hence, the instant revision petition.

3. Learned counsel for the petitioners contends that the learned Appellate Court committed grave illegality and material irregularity in exercise of jurisdiction by reversing a well-reasoned judgment without properly appreciating the evidence available on record. He argues that the learned Appellate Court erroneously shifted the burden of proof upon the petitioners despite the fact that the respondent was claiming title through an alleged oral gift which stood categorically denied by the original owners. He maintains that a mutation entry is not a document of title and cannot independently establish a valid gift, particularly when the essential ingredients of offer, acceptance and delivery of possession were neither pleaded with requisite particulars nor proved through reliable evidence. He further submits that the learned Appellate Court misread the statements of the petitioners by relying only upon isolated admissions regarding signatures and thumb impressions while completely ignoring their explanation that they were unaware of the true nature of the transaction. He further submits that the certified copies of *Khasra Girdawari* produced by the petitioners clearly demonstrated their continued possession over the suit property long after the alleged gift, yet such documentary evidence was ignored altogether. Lastly, he argues that the respondent withheld the most material witnesses, namely the concerned revenue officials, and the

learned Trial Court rightly drew an adverse inference against her, which aspect was also ignored by the learned Appellate Court. In support, he has relied upon Noor Muhammad and others v. Mst. Azmat-e-Bibi (2012 SCMR 1373), Mrs. Khalida Azhar v. Viqar Rustam Bakhshi and others (2018 SCMR 30) and Muhammad Sarwar v. Mumtaz Bibi and others (2020 SCMR 276).

4. Conversely, learned counsel for the respondent supports the impugned judgment and contends that once the petitioners admitted their signatures/thumb impressions on the mutation proceedings, a strong presumption of correctness attached to the revenue record and the burden shifted upon them to establish fraud. He adds that the learned Appellate Court rightly appreciated the evidence and no ground for interference in revisional jurisdiction is made out.

5. Having heard the learned counsel for the parties and having examined the record with their assistance, it appears that the controversy essentially revolves around the validity of the oral gift allegedly made in favour of the respondent and the legality of the reversal of the Trial Court's findings by the learned Appellate Court. The principal questions requiring determination are: (i) whether the respondent successfully established a valid oral gift in accordance with the Muslim Personal Law; (ii) whether mutation No.1819 dated 27.04.2010, by itself, constituted proof of title; and (iii) whether the findings recorded by the learned Appellate Court suffer from misreading or non-reading of evidence. These questions are examined in the light of the settled principles governing proof of *Hiba* under Muslim Law and the evidentiary value of the revenue entries.

6. The respondent claims exclusive ownership of the entire suit property through an oral gift allegedly made by the petitioners. Such a claim, by its very nature, imposes a heavy burden upon the beneficiary. It is settled law that a mutation entry neither creates nor extinguishes title; revenue entries are maintained primarily for fiscal purposes and do not, by themselves, confer proprietary rights. Where a gift is specifically denied by the donor and challenged before a Court of law, the beneficiary cannot merely rely upon a mutation

entry and must independently establish all essential ingredients of a valid gift; the burden never shifts merely because a mutation has been sanctioned or because the donor admits signatures on the mutation. Reliance in this regard is placed upon the judgment of the august Supreme Court in Khaliqdad Khan and others v. Mst. Zeenat Khatoon and others (2010 SCMR 1370), wherein the relevant observations are as follows:

“7. ...It is settled law that it is the duty and obligation of the beneficiary to prove the mutations by producing evidence in accordance with the accepted principles and in terms of Qanun-e-Shahadat Order, 1984. Otherwise, it does not create any title. The judgment of the Lahore High Court is in consonance with the law laid down by this Court in various pronouncements according to which onus of proof of transaction embodies in mutation is essentially upon the beneficiary and onus to prove voluntary execution of gift upon beneficiary of gift as well as to establish that transaction was the result of conscious application of mind by donor and not under influence of fraud played with him...”

The principle was reaffirmed by the august Supreme Court of Pakistan in Mst. Ramzanu Bibi v. Ibrahim (deceased) through L.Rs. and others (2025 SCMR 955), in the following terms:

“8. ...The mutation, as stated above, does not confer title in favour of any party but constitutes merely an official record for fiscal purposes. As such, its illegal approval by the revenue officer had no bearing on the appellant's title and could be treated as a nullity...”

The learned Appellate Court attached undue significance to the petitioners' admission of signatures/thumb impressions and treated the mutation proceedings almost as conclusive proof of title. In doing so, it overlooked the settled distinction between a fiscal entry and a legally enforceable transfer of ownership. The existence of a mutation could at best corroborate an independently proved transaction; it could never substitute proof of the transaction itself. Question (ii) is, accordingly, answered in negative.

8. The respondent was, therefore, required to establish all essential ingredients of a valid gift under Muslim Personal Law, namely: (i) a clear declaration of gift by the donor; (ii) acceptance thereof by the donee; and (iii) delivery of possession. A careful examination of the

pleadings and evidence further reveals that the respondent failed to establish these essential ingredients of a valid oral gift under Muslim Law. Neither in the written statement nor in the evidence was there any satisfactory disclosure regarding the exact date, place and circumstances of the alleged declaration of gift, its acceptance or the manner in which possession was delivered, particulars that were necessary to plead and prove. Reliance is placed upon the decision of the august Supreme Court rendered in Abdul Majeed and others v. Mst. Khalida Bibi (Deceased) through L.Rs. and others (2026 SCMR 587), wherein it was held:

“4. The basic ingredients for a valid gift are: offer, acceptance and delivery of possession. In the present case, reply to paragraph No.2 of the plaint by the present petitioner(s) in their written statement deals with the purported gift made by the deceased Imdad Ali, propositus, in favour of petitioners/defendants. For ease of reference, the same is reproduced in verbatim as under:-

یہ کہ ضمن نمبر 2 عرضی دعوی غلط ہے۔ درست تسلیم نہ ہے لہذا انکاری ہے۔ مورث اعلیٰ مدعی امداد علی نے اپنی زندگی میں ہی اراضی متدعوئیہ مدعا علیہم کے نام بروئے رجسٹرڈ تملیک نمبری 1/162 مورخہ 27-02-1992 رجسٹرڈ تملیک نمبر 1/901 مورخہ 21-09-1993 تملیک ہو چکی ہے اور تحت رجسٹرڈ تملیک بحق مدعا علیہم انتقالات نمبری 835 مصدقہ مورخہ 27-02-1992 اور انتقال نمبر 884 مورخہ 19-01-1994 ہو چکے ہیں اور اسی کے تحت مدعا علیہم اراضی متدعوئیہ پر بحیثیت مالک و قابض متصرف ہیں۔

Bare reading of the above excerpt goes to make it vivid and divulges that no description of making of offer as to gifting out of the disputed property to the petitioner(s) by deceased Imdad Ali, acceptance of the same by them (petitioners), venue and names of witnesses in whose presence such transaction took place, has been given, which are necessary to be pleaded and proved, even the same have not been deposed during evidence either by the petitioners or their witnesses because a party cannot lead any evidence beyond its pleadings...”

Applying the same standard, the respondent’s pleadings and evidence in the present case suffer from the identical deficiency: she nowhere specified when, where, or in whose presence the gift was made and accepted, or how possession was delivered. The respondent has also conflated the date of attestation of the mutation with the date of the gift, which is legally impermissible, a mutation entry cannot cure deficiencies in proof of the substantive transaction upon which it is

found. The learned Trial Court rightly noticed these deficiencies but the learned Appellate Court failed to address them in proper legal perspective. Question (i) is, accordingly answered in the negative.

9. The learned Appellate Court also appears to have fallen into error while appreciating the cross-examination of the petitioners. A reading of the evidence as a whole shows that although the petitioners admitted their presence before the revenue authorities and acknowledged their signatures/thumb impressions, they simultaneously explained that they were not aware that any gift transaction was being recorded and were led to believe that they were merely obtaining copies of documents. The learned Appellate Court isolated one part of the testimony while ignoring the explanatory portion thereof. Such selective reading of evidence constitutes a classic instance of misreading and non-reading of material evidence. Testimony must always be read as a whole and not in disconnected fragments.

10. Another significant aspect of the case relates to possession. Delivery of possession is one of the indispensable ingredients of a valid gift. The petitioners produced certified copies of *Khasra Girdawari* reflecting their continued cultivation and possession over the suit property even after the alleged mutation of 2010. These public documents carried substantial evidentiary value and directly touched upon the question whether possession had ever passed to the respondent. Strikingly, the learned Appellate Court neither discussed these documents in any meaningful manner nor assigned reasons for discarding them. Such omission assumes greater significance because the respondent failed to produce any convincing documentary evidence demonstrating her exclusive possession of the suit property.

11. The learned Trial Court had also drawn an adverse inference against the respondent for withholding the most material witnesses available to her, namely the concerned *Patwari* and other revenue officials associated with the attestation of the mutation. The challenge before the Court was not merely to the correctness of the mutation entry but to the very transaction underlying it. In such circumstances, the testimony of the revenue officials assumed considerable

importance. The respondent's failure to produce such material witnesses justified the drawing of an adverse presumption under Article 129(g) of the *Qanun-e-Shahadat* Order, 1984. The learned Appellate Court completely ignored this aspect while reversing the judgment of the learned Trial Court. On this evidence, and for the reasons set out in paragraphs 6 to 9 above, question (iii) is also answered in the negative, the impugned appellate judgment suffers from misreading and non-reading of material evidence.

12. The reasoning adopted by the learned Appellate Court that parental affection towards the respondent furnished support to the alleged gift is equally untenable. An expression of love and affection, even if admitted, does not establish a valid transfer of ownership of valuable agricultural land. Such an inference is speculative and cannot substitute proof of the essential legal ingredients required for completion of a gift. The record further reflects that the alleged transaction would have the effect of excluding the petitioners' other daughters altogether, a circumstance which demanded careful judicial scrutiny rather than assumptions based upon subjective considerations.

13. Although the revisional jurisdiction of this Court under Section 115, C.P.C. is limited in scope, interference is warranted where the subordinate Court has acted with material irregularity in the exercise of jurisdiction, misapplied settled principles of law, or recorded findings suffering from misreading or non-reading of material evidence. The impugned appellate judgment suffers from all these defects. The learned Appellate Court ignored material documentary evidence, misread oral testimony, treated a mutation as a document of title, failed to appreciate the legal requirements governing an oral gift, and reversed a well-reasoned judgment of the learned Trial Court without any lawful basis. The impugned judgment, therefore, cannot be sustained.

14. The learned Trial Court, on the other hand, properly appreciated the evidence available on record, correctly allocated the burden of proof, examined the legal requirements of a valid gift, considered the documentary evidence relating to possession, and rightly drew an

adverse inference against the respondent for withholding material witnesses. Its conclusions are fully supported by the record and do not suffer from any legal infirmity warranting interference.

15. Consequently, this civil revision petition is **allowed**. The judgment and decree dated 09.07.2021 passed by the learned Additional District Judge, Faisalabad, are **set aside**, while the judgment and decree dated 12.12.2020 passed by the learned Civil Judge, Faisalabad, are **restored** and **upheld**.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan / A.H.S.